

1.

CASE #	CASE NAME	HEARING NAME
CVPS2506584	LOPEZ LOPEZ VS RESTREPO	MOTION TO COMPEL BY JUAN LOPEZ LOPEZ

Tentative Ruling: No tentative ruling. Motion was vacated by moving party.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2600950	DOE VS WILMA AND FRIEDA'S, INC., A CALIFORNIA CORPORATION	ORDER TO SHOW CAUSE RE: USE OF PSEUDONYM AS TO DAVIT HOVSEPYAN, JOHN DOE, TIFFANY B TELLO

Tentative Ruling: “Because of the inherently sensitive nature of some proceedings, statutes specifically allow for keeping certain parties' identities confidential.” (*Department of Fair Employment and Housing v. Superior Court of Santa Clara County* (2022) 82 Cal.App.5th 105, 110.) “Even in the absence of a statute, anonymity for parties may be granted when necessary to preserve an important privacy interest.” (*Id.*)

“Among the guarantees of the First Amendment to the United States Constitution is that court proceedings are open and public. [Citation.] Public access to court proceedings is essential to a functioning democracy. It promotes trust in the integrity of the court system, and it exposes abuses of judicial power to public scrutiny. [Citation.] The right of public access applies not only to criminal cases, but also to civil proceedings like this one. [Citation.] And the right to access court proceedings necessarily includes the right to know the identity of the parties. [Citation.]” *Department of Fair Employment and Housing v. Superior Court of Santa Clara County* (2022) 82 Cal.App.5th 105, 110-111.)

“Before a party to a civil action can be permitted to use a pseudonym, the trial court must conduct a hearing and apply the overriding interest test: A party's request for anonymity should be granted only if the court finds that an overriding interest will likely be prejudiced without use of a pseudonym, and that it is not feasible to protect the interest with less impact on the constitutional right of access. In deciding the issue the court must bear in mind the critical importance of the public's right to access judicial proceedings. Outside of cases where anonymity is expressly permitted by statute, litigating by pseudonym should occur ‘only in the rarest of circumstances.’ [Citation.]” (*Department of Fair Employment and Housing v. Superior Court of Santa Clara County* (2022) 82 Cal.App.5th 105, 111-112.)

As Plaintiff's identity is known to Defendants, proceeding anonymously would not intrude on their rights. (*Department of Fair Employment and Housing v. Superior Court of Santa Clara County* (2022) 82 Cal.App.5th 105, 110.) Therefore, the only factor the court must consider is whether Plaintiff's anonymity outweighs the public's First Amendment interests in knowing the party's identity.

In ruling on a motion for anonymity, the court must consider all relevant evidence likely to affect the answer, but the moving party seeking anonymity has the burden. (*Department of Fair Employment and Housing v. Superior Court of Santa Clara County* (2022) 82 Cal.App.5th 105, 112.)

Plaintiff's declaration states that he fears that he may face further harassment and discrimination if he finds employment elsewhere and disclosure of his name would affect

his family and him if any of his private and personal information became public. His declaration alleges that he reasonably fears that unless he is able to use the name John Doe, Defendants and their employees and people assisting them will use it in an unlawful and dangerous way to try to prevent, interfere, or intimidate me from continuing with my lawsuit against them. He states that with the public having access to the internet, his actual name and addresses could be found, and he could easily be targeted.

Plaintiff's claim of retaliation by Defendant's employee's or "people assisting them" is speculative. Additionally, Defendants are already aware of Plaintiff's identity. Plaintiff's remaining claims about his personal information being released would affect him and his family fails to provide a basis as to what harm may occur. As highlighted in the Opposition of Defendants, Plaintiff's concerns are common to other employment discrimination suits and does not merit the remedy of anonymity. Granting the use of a pseudonym without a specific statute should only be granted in the rarest of circumstances. Plaintiff has failed to meet his burden to show that this is a rare circumstance that overrides the public's First Amendment rights.

Plaintiff's Request to Proceed under a Pseudonym is DENIED. Plaintiff is to file an amended complaint reflecting Plaintiff's name prior to next court date on 8.26.26.

Case Management Conference confirmed for 8.26.26.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2601156	HOME EXPO FINANCIAL INC. VS SPIROPOULOS	DEMURRER ON COMPLAINT OF HOME EXPO FINANCIAL INC. BY GEORGE SPIROPOULOS

Tentative Ruling:

The hearing on the demurrer is continued to 9.02.26. Defendant is ordered to **meet and confer in person, phone or videoconference** with Plaintiff for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the demurrer. As part of the meet and confer process, Defendant shall identify the specific causes of action that it believes are subject to demurrer and identify with legal support the basis of the deficiencies. Plaintiff shall provide legal support for its position that the pleading is legally sufficient or, in the alternative, how the complaint may be amended to cure any legal insufficiency.

After meeting and conferring, Defendant shall have 10 days before the continued hearing date set above to do one of the following:

- 1) Vacate the hearing on the demurrer, and file an Answer;
- 2) File with the court a declaration stating the parties have agreed that Plaintiff will file an amended complaint before the date set forth above; or
- 3) File with the Court a declaration stating the means by which the parties met and conferred and identifying the specific objections in the demurrer and supporting memorandum of points and authorities that the parties were unable to resolve. (C.C.P. § 430.41(a)(3).)